



CHAPTER 71

An Act to make new provision as to the functions of the Colonial Development Corporation, including provision in respect of past activities of the said Corporation ; and for purposes connected with the matters aforesaid.
[2nd August, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section one of the Overseas Resources Development Functions Act, 1948 (which relates to the establishment and functions of the Colonial Development Corporation) shall have effect, and shall be deemed always to have had effect, as if in subsection (1) of that section (which provides that there shall be a Colonial Development Corporation charged with the duty therein mentioned), for the words from “charged with the duty” to the end of the subsection, there were substituted the words “for the purpose of assisting colonial territories, in accordance with the provisions of this Act, in the development of their economies”, and the following provisions were substituted for subsection (2) of the section (which confers powers on the said Corporation for the purpose of the discharge of their duty under subsection (1) thereof):—

“(2) For that purpose the said Corporation shall (subject to the following provisions of this section) have power, either alone or in association with other bodies or persons, or as managing agents or otherwise on behalf of other bodies or persons,—

(a) to investigate and formulate projects for the promotion or expansion in colonial territories of new or

existing enterprises to which this section applies, and to carry out any such projects;

- (b) to carry on undertakings in colonial territories which appear to the said Corporation to be needed for or in connection with the promotion or expansion in those territories of new or existing enterprises to which this section applies;
 - (c) to carry on any activities incidental to a project falling within paragraph (a) of this subsection, or to an undertaking falling within the last preceding paragraph, which appear to the said Corporation to be requisite, advantageous or convenient for or in connection with that project or undertaking;
 - (d) to assist other bodies or persons, either financially or in any other way, to perform any functions which the said Corporation are empowered to perform by virtue of any of the preceding paragraphs;
 - (e) to establish or expand, or promote the establishment or expansion of, other bodies to carry on (either under the control or partial control of the said Corporation or independently) any such functions as are mentioned in the last preceding paragraph.
- (3) This section applies to any enterprise falling within one or more of the following classes, that is to say,—
- (a) agricultural enterprises, including any enterprise concerned with the livestock industry, with horticulture, or with forestry;
 - (b) enterprises concerned with fisheries, including any enterprise relating to the taking of marine mammals;
 - (c) enterprises for the working or getting of minerals;
 - (d) industrial enterprises;
 - (e) enterprises for providing, maintaining or improving the supply or distribution of water, electricity or gas;
 - (f) enterprises for providing, maintaining or improving transport facilities or transport services, or for providing, maintaining or improving telegraph or telephone services, including wireless services other than broadcasting, but not including broadcast relay services;
 - (g) enterprises for the provision or improvement of houses or other dwellings;
 - (h) enterprises for the keeping of hotels;

- (i) enterprises for processing, storing or marketing any products of one or more enterprises falling within any of the preceding paragraphs;
- (j) enterprises for the carrying out of building, engineering or other operations in, on, over or under land.

(4) Notwithstanding anything in subsection (2) of this section, the said Corporation shall not have power, except—

- (a) in the course of carrying on an undertaking as building or engineering contractors, or
- (b) in connection with an enterprise falling within any of paragraphs (a) to (i) of the last preceding subsection,

to investigate, formulate or carry out any project for providing schools, colleges, hospitals, Government offices, or other buildings or works for the public service, and shall not have power to give financial assistance to any other body or person for the investigation, formulation or carrying out of any such project, except in the course of the carrying on by that body or person of an undertaking as a building or engineering contractor, or in connection with an enterprise falling within any of the said paragraphs.

(5) In relation to any project for promoting or expanding an enterprise falling within paragraph (f) of subsection (3) of this section, where the facilities or services in question are, or will be, for purposes of communication with a colonial territory, but are, or will be, located or carried on wholly or partly outside that territory, and—

- (a) those facilities or services are, or will be, wholly for communication between that colonial territory and one or more other colonial territories, or
- (b) the project is approved by the Secretary of State for the purposes of this subsection,

the provisions of subsection (2) of this section shall apply as those provisions would apply if the facilities or services were wholly within that colonial territory.

(6) For the purposes of this section any such enterprise as is mentioned in paragraph (b) of subsection (3) of this section, which is carried on wholly or mainly from a base in a colonial territory, shall be deemed to be an enterprise in that territory.

(7) In this section the expression “minerals” includes any substance in or under land of a kind ordinarily worked for removal by underground or by surface working; the

expression "transport" means transport by land, by water or by air, and references to transport facilities include roads, bridges, railways, waterways and other transport installations; and references to the giving of financial assistance are references to the giving of such assistance by the taking up of share or loan capital, or by grant, loan or otherwise, and any reference to bodies or persons includes a reference to Government authorities."

(2) Paragraph (b) of section nineteen of the said Act of 1948 (which relates to the interpretation of references to agriculture in that Act) is hereby repealed; and in paragraph 9 of the Schedule to the said Act of 1948 (which confers on the said Corporation certain ancillary powers), for the words from "in their opinion" to the end of the paragraph, there shall be substituted the words "is incidental or conducive to the exercise of their powers under this Act".

(3) Without prejudice to subsection (1) of this section, any project, undertaking or activity in which the said Corporation engaged, or agreed to engage, before the thirty-first day of December, nineteen hundred and fifty-five, and which was specified as such a project, undertaking or activity in a report of the said Corporation made and laid before Parliament under subsection (2) of section nine of the said Act of 1948 in respect of any financial year of the Corporation ending not later than that day, shall be deemed to have been within the powers of the said Corporation under section one of the said Act of 1948, as amended by subsection (1) of this section, if apart from this subsection it would not have been within those powers, and, if not completed before the passing of this Act, may be carried out or carried on by the said Corporation accordingly.

Special provisions as to Federation of Rhodesia and Nyasaland.

2.—(1) The provisions of this section shall have effect as to the powers of the Colonial Development Corporation in relation to the Federation of Rhodesia and Nyasaland (in this section referred to as "the Federation") and the territories comprised therein.

(2) Any agreement made by the said Corporation before the passing of this Act, which would have been within their powers under section one of the Overseas Resources Development Act, 1948, if Southern Rhodesia had been a colonial territory within the meaning of that Act, shall be deemed to have been within the said powers of the Corporation, if apart from this subsection it would not have been within those powers, and may be carried out by the Corporation accordingly.

(3) Without prejudice to the last preceding subsection, where apart from this subsection a project or undertaking would be within the powers of the said Corporation under section one of

the said Act of 1948, if Southern Rhodesia were a colonial territory within the meaning of that Act, the Secretary of State may authorise the Corporation to exercise those powers in relation to that project or undertaking as if Southern Rhodesia were such a colonial territory:

Provided that the Secretary of State shall not give such an authorisation in the case of a project or undertaking unless—

(a) he is satisfied that the project or undertaking is needed for or in connection with the promotion, in a part of the Federation outside Southern Rhodesia, of new enterprises to which the said section one applies, or for or in connection with the expansion in such a part of the Federation of existing enterprises to which that section applies, and

(b) having regard to the purpose for which the said Corporation is established, he is satisfied that it is expedient that the Corporation should be authorised so to exercise their powers in that case.

(4) Nothing in the last preceding subsection shall be construed as affecting the exercise of any powers of the Corporation, in cases where those powers are to be exercised in relation to a part of the Federation outside Southern Rhodesia, but not in relation to any part of Southern Rhodesia.

(5) Subsection (3) of section thirteen of the Federation of Rhodesia and Nyasaland (Constitution) Order in Council, 1953 (which relates to the application of the Overseas Resources Development Acts, 1948 to 1951, to the Federation) is hereby revoked.

(6) Any reference in this section to section one of the Overseas Resources Development Act, 1948, is a reference to that section as amended by the preceding section.

3.—(1) If it appears to the Secretary of State to be expedient to add to the classes of enterprises specified in subsection (3) of section one of the Overseas Resources Development Act, 1948, as amended by section one of this Act, the Secretary of State, with the consent of the Treasury, may by order direct that the said subsection (3) shall have effect with the addition of such one or more classes of enterprises as may be specified in the order.

Extension of
powers of
Corporation to
additional
enterprises.

(2) Any order under this section may be revoked or varied by a subsequent order thereunder.

(3) The power to make orders under this section shall be exercisable by statutory instrument; and any instrument containing such an order shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Financial
provisions.

4.—(1) Any additional sums which, by reason of the preceding provisions of this Act, may be required to be issued out of the Consolidated Fund, or paid into the Exchequer, or raised by the Treasury, under the Overseas Resources Development Acts, 1948 to 1954, shall be charged on and issued out of the Consolidated Fund, or paid into the Exchequer, or may be so raised by the Treasury, as the case may be.

(2) There may be remitted, in accordance with the provisions of section five of the Overseas Resources Development Act, 1954, the payment of any additional interest which, by reason of the preceding provisions of this Act, the Secretary of State, with the consent of the Treasury, may be empowered to remit under that section.

Short title
and citation.

5. This Act may be cited as the Overseas Resources Development Act, 1956, and this Act and the Overseas Resources Development Acts, 1948 to 1954, may be cited together as the Overseas Resources Development Acts, 1948 to 1956.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 6d. net

PRINTED IN GREAT BRITAIN

(37730)